

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR ENGROSSED
HOUSE BILL NO. 2978

By: Banning, Olsen, Hall,
Hilbert, Norwood, Staires,
Gise, Hays, Hill, Adams,
and Woolley of the House

and

Logan, Jett, and Hamilton
of the Senate

COMMITTEE SUBSTITUTE

An Act relating to schools; defining terms; requiring each school district and charter school to conduct certain audit, remove certain books or materials, and submit to the State Department of Education certain listing annually by certain date; requiring submission of certain attestation; requiring certain catalog to be publicly accessible; prohibiting certain library from purchasing or having certain books or other materials; providing certain construction; providing process for reporting suspected violations; providing for notification; requiring a public meeting within certain time period under certain circumstances; requiring certain advance meeting notice; requiring public comment; providing for appeal to the State Department of Education; requiring certain investigation and notification of investigation findings; allowing a school district or charter school to request certain hearing within certain time period; directing the State Board of Education to review certain information and vote on certain determination; authorizing certain designation of a school for certain noncompliance; providing graduated penalty for noncompliance; providing for promulgation of

1 rules; providing for codification; providing an
2 effective date; and declaring an emergency.

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4 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

5 SECTION 1. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 11-203 of Title 70, unless there
7 is created a duplication in numbering, reads as follows:

8 A. As used in this section:

9 1. "Harmful to minors" has the same meaning as provided in
10 Section 1040.75 of Title 21 of the Oklahoma Statutes;

11 2. "Library" means a school library, media program, classroom
12 library, or any other collection of books or other materials, print
13 or digital, that are maintained by a school district or charter
14 school or its employees for use by students and that do not qualify
15 as textbooks approved by the State Textbook Committee pursuant to
16 Sections 16-101 through 16-124 of Title 70 of the Oklahoma Statutes;

17 3. "Nudity" has the same meaning as provided in Section 1040.75
18 of Title 21 of the Oklahoma Statutes;

19 4. "School library" means the library maintained by a school
20 district or charter school for use by students; and

21 5. "Sexually explicit content" means any communication,
22 language, or material including a written description, illustration,
23 photographic image, video image, or audio file that describes,
24 depicts, or portrays actual or simulated sexual intercourse, deviate

1 sexual intercourse, rape, sexual bestiality, masturbation, sado-
2 masochistic abuse, incest, molestation, necrophilia, or lewd
3 exhibition of the genitals, anus, or any portion of the female
4 breast below the top of the areola.

5 B. By October 1, 2026, and by every October 1 thereafter, each
6 school district and charter school in this state shall:

7 1. Audit all books and other materials available in its library
8 and remove any book or other material containing or depicting
9 sexually explicit content, nudity, or material that is harmful to
10 minors; and

11 2. Submit to the State Department of Education a complete
12 listing of all books and other materials available in its school
13 library. To fulfill the requirement of this subsection, a school
14 district or charter school superintendent shall submit an
15 attestation that the public online school library catalog or
16 catalogs contain a complete and accurate list of books and other
17 materials accompanied by the website for accessing the relevant
18 catalog or catalogs. An online library catalog shall be accessible
19 to the general public without requiring a password or login
20 credential.

21 C. A library in a school district or charter school shall be
22 prohibited from purchasing or having any books or other materials
23 containing or depicting sexually explicit content, nudity, or
24 material that is harmful to minors.

1 D. Nothing in this section shall prohibit a student from
2 reading, owning, possessing, or discussing any book obtained without
3 the assistance or encouragement of a school district or charter
4 school, its employees, or its libraries; provided, however, nothing
5 in this section shall be construed to allow a student to bring
6 materials containing or depicting sexually explicit content, nudity,
7 or material that is harmful to minors on the grounds of a school
8 district or charter school.

9 E. 1. The parent or legal guardian of a student enrolled in a
10 school district or charter school, a resident of a school district,
11 or an individual who resides within the boundaries of the school
12 district in which a charter school is located may submit a formal
13 challenge regarding a suspected violation of the provisions of this
14 section to the principal of the school district site or charter
15 school site where the suspected violation is located. The formal
16 challenge shall include a written complaint summarizing the alleged
17 violation including the time, date, and location of the alleged
18 violation and the identity of any person involved.

19 2. Upon receipt of a formal challenge, the principal shall
20 immediately remove the book or other material from school premises
21 until a final decision has been determined pursuant to the
22 provisions of this subsection. The principal shall notify the
23 superintendent of the school district or charter school of the
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1 formal challenge within three (3) business days of its receipt. The
2 superintendent of the school district or charter school shall:

3 a. permanently remove the book or other material if it is
4 deemed to contain or depict sexually explicit content,
5 nudity, or material that is harmful to minors and
6 notify the school district board of education or the
7 charter school governing body within one (1) business
8 day of permanently removing the book or other
9 material, or

10 b. deny the formal challenge and notify the school
11 district board of education or the charter school
12 governing body within one (1) business day of issuing
13 the denial.

14 3. If the superintendent of the school district or charter
15 school denies the formal challenge, the school district board of
16 education or the charter school governing body shall hold a public
17 meeting within thirty (30) business days of issuing the denial to
18 determine whether to uphold or overturn the denial. Notice of the
19 public meeting shall be posted five (5) days in advance, and the
20 meeting shall allow a minimum of forty-five (45) minutes for public
21 comment.

22 4. If the school district board of education or the charter
23 school governing body upholds the denial of a formal challenge, the
24 individual who submitted the formal challenge may appeal the

1 decision to the State Department of Education. The Department shall
2 conduct an investigation to determine whether a violation occurred.
3 The Department shall notify the individual who submitted the appeal
4 and the school district or charter school of the findings of the
5 investigation.

6 5. If the Department determines a violation occurred, the
7 school district or charter school shall have fourteen (14) business
8 days to request a hearing before the State Board of Education. The
9 Board shall review the alleged violation, the findings of the
10 Department's investigation, and the response from the school
11 district or charter school and vote on whether to uphold the
12 Department's determination.

13 6. If the State Board of Education votes to uphold the State
14 Department of Education's determination, the Board is authorized to
15 report a school district or charter school as deficient on the
16 accreditation report for noncompliance with the provisions of this
17 section.

18 7. Upon a finding of noncompliance with the provisions of
19 subsections B and C of this section by the State Board of Education,
20 a school district or charter school shall have thirty (30) days to
21 comply with the determination.

22 a. If the State Department of Education determines that a
23 school district or charter school has failed to comply
24 with the State Board of Education's determination

1 after thirty (30) days, the noncompliant school
2 district or charter school shall receive a two-percent
3 reduction in state funding for the fiscal year
4 following the fiscal year of noncompliance.

5 b. If the Department determines that a school district or
6 charter school has failed to comply with the Board's
7 determination after sixty (60) days of its issuance,
8 the noncompliant school district or charter school
9 shall receive an additional two-percent reduction in
10 state funding for the fiscal year following the fiscal
11 year of noncompliance.

12 c. If the Department determines that a school district or
13 charter school has failed to comply with the Board's
14 determination after ninety (90) days of its issuance,
15 the noncompliant school district or charter school
16 shall receive an additional one-percent reduction in
17 state funding for the fiscal year following the fiscal
18 year of noncompliance.

19 F. The State Board of Education shall promulgate rules to
20 implement the provisions of this section.

21 SECTION 2. This act shall become effective July 1, 2026.

22 SECTION 3. It being immediately necessary for the preservation
23 of the public peace, health, or safety, an emergency is hereby
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1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

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